

ter of record is unnecessary (*d*); for, as Lord Tenterden observed, there can be no disclaimer by a person in a court of record, unless some other person think fit to cite him there to receive his disclaimer, and if the estate be *damnosa hæreditas*, that is not very likely to happen (*e*). It has been lately held that the estate may be divested by the disclaimer of the trustee in chancery, though appearing only as a respondent upon a petition (*f*); and Mr. Justice Holroyd laid it down generally that a party might disclaim a freehold not only by deed but by parol (*g*); and the doctrine has since been sanctioned by actual decision (*h*).

11. **Disclaimer of uses.**—It was laid down in *Butler and Baker's case*, that estates limited under the statute of uses were to be disclaimed with the same formalities as estates at common law (*i*); but Lord Eldon doubted whether a party could disclaim in the case of a conveyance to uses, except by release with intent of disclaimer: however, his Lordship added, he was aware that such a doctrine would shake titles innumerable (*j*).

12. **Disclaimer of chattels.**—It seems to be clearly established, that a disclaimer by parol declaration, will suffice to divest the legal estate, where the trust property is a mere chattel interest (*k*).

13. **Disclaimer by feme covert.**—Whether a *feme covert* could, under the Fines and Recoveries Act, disclaim an interest in real estate, was, by the terms of the statute, left doubtful; the act enabling her only to “dispose of, release, surrender, or extinguish,” any estate or power as if she

(*d*) *Townson v. Tickell*, 3 B. & A. 31; *Begbie v. Crook*, 2 Bing. N. C. 70; S. C. 2 Scott, 128.

(*e*) *Townson v. Tickell*, 3 B. & A. 38.

(*f*) *Foster v. Dawber*, 8 W. R. 646; the trust estate comprised mortgages: but see *Re Ellison's Trust*, 2 Jur. N. S. 62.

(*g*) *Townson v. Tickell*, 3 B. & A. 38, citing *Bonifant v. Greenfield*, Cro. Eliz. 80; and see *Doe v. Smyth*, 6 B. & C. 112.

(*h*) *Bingham v. Clanmorris*, 2 Moll. 253. And see *Shepp. Touch.* 452; *Doe v. Smyth*, 6 B. & C. 112; *Doe v. Harris*, 16 M. & W. 517; but see *Re Ellison's Trust*, 2 Jur. N. S. 62.

(*i*) 3 Rep. 27, a.

(*j*) *Nicloson v. Wordsworth*, 2 Sw. 372.

(*k*) *Shepp. Touch.* 285; *Butler and Baker's case*, 3 Rep. 20, b, 27, a; *Smith v. Wheeler*, 1 Vent. 130; S. C. 2 Keb. 774; *Doe v. Harris*, 16 M. & W. 520, 521, per Parke, B.